

EXHIBIT C**Tuxedo Park’s History of Photography, Filming and Publication**

A focused record of location shoots, published imagery, real-estate marketing, and prior Village practice.

Submitted by: David McFadden and Robin McFadden | **Public hearing:** August 20, 2026

1. Why This Record Matters

The actual session also remained owner controlled. David was present throughout; the owners retained possession, supervision, and control of the property. The photographer, models, and other participants were admitted for a limited purpose, not occupants given the premises as a temporary residence. That factual structure is comparable to other owner-hosted private activities—such as a book signing, a charitable fundraiser, a design presentation, or an invitation-only gathering—even though the resulting photographs may have commercial value.

Tuxedo Park’s architecture, landscapes, homes, institutions, and residents have appeared in commercially distributed books, magazines, television, streaming programs, club publications, and real-estate media for decades. This record does not prove that every physical shoot complied with Chapter 51. It does show that “commercial gain” cannot credibly be applied only to one owner’s location fee while economically motivated image-making elsewhere is ignored or treated differently.

The categories below intentionally distinguish independently documented activity from matters that require confirmation through Village records or firsthand evidence.

Relationship to the Mayor’s July announcement

The mayor’s message describes—but does not reproduce—a proposed law concerning the “rental of accessory structures” to the “general public.” This exhibit does not assume that the unseen draft regulates photography. It documents why those undefined terms matter: if “rental” is drafted broadly enough to reach a compensated, owner-controlled location session, neutral application may also affect the many commercial, institutional, editorial, promotional, and event-related uses cataloged below.

The Club boathouse, annual car show, and regatta

The Tuxedo Club’s own public materials document organized professional image-making at one of the Village’s largest property owners. Its July 19, 2026, announcement promoted the 12th Annual “Field of Driving Dreams” on the Main Clubhouse lawn and credited photographer Jess Marchione. Its July 26 Reel credited professional video, thanked volunteers, staff, and sponsors, and characterized the event as growing year after year.

The Tuxedo 1886 Regatta is independently documented by Rowing News and the Craftsbury Green Racing Project. The sources describe a Club-hosted head-to-head sculling event on Tuxedo Lake, elite and Olympic- and national-team-level competitors, professional photography and social-media promotion, and cash prizes. The course passes the Club boathouse and privately owned boathouses.

These examples are offered as comparators, not as criticism of the Club. They demonstrate that professional photography, event video, and boathouse-related filming can be compatible with Village character. Any new rule should turn on measurable impacts and apply uniformly.

Sources: The Tuxedo Club Instagram announcement, July 19, 2026 —

https://www.instagram.com/the_tuxedo_club_/p/Da-2k2PzpZ8/; The Tuxedo Club “Field of Driving Dreams” Reel, July 26, 2026 —

https://www.instagram.com/the_tuxedo_club_/reel/DbRWkYZpcbs/; Rowing News, “Top Scullers Compete for \$4k at Tuxedo Park Regatta” —

<https://www.rowingnews.com/top-scullers-compete-for-4k-at-tuxedo-park-regatta/>;

Craftsbury Green Racing Project, “GRP Rowers invited to The Tuxedo 1886 Regatta” —

<https://www.greenracingproject.com/grpnews/grp-rowers-invited-to-the-tuxedo-1886-regatta>

2. Confirmed or Independently Documented Image-Making

Activity	Physical-location evidence	Commercial or institutional dimension	Relevance
Town & Country / Hearst editorial shoot (Sept. 8, 2011)	Getty Images identifies a Town & Country shoot at Ledge Lodge in Tuxedo Park and a larger archive of	Commercial magazine; professional photographer; rights-managed published images.	A contained editorial/fashion-style shoot at a Village property is a close comparator.

	Tuxedo images; the uploaded research identifies additional private-home and Club subjects.		
Tuxedo Park: The Historic Houses (2007)	Published volume contains 230 commissioned color photographs of Village architecture and residences.	Illustrated book sold commercially and by local institutions.	Commissioned photography of private historic homes was used to publish and promote the Village's architecture.
Tuxedo Park illustrated books (2010 and 2015)	Lives, Legacies, Legends, and The Gift of Nature contain extensive Village imagery.	Commercial/institutional publication; sales benefit local institutions.	Economic or institutional benefits do not change the physical impact of creating the image.
Real-estate listing photography and video	High-end Village listings routinely use interior, exterior, aerial, and video imagery carried by brokerages and national platforms.	Created to market a commercial transaction and obtain the best sale price; brokers and photographers are compensated.	The clearest "commercial gain" comparator; FOIL should establish enforcement history.
Tuxedo Club and Gold Racquet coverage	Club and court-tennis organizations publish events and institutional imagery from Club properties.	Club promotion, event coverage, publications, and institutional benefit.	Shows recurring organized image-making associated with a major Village property owner.

Source: [Getty Images — Town & Country photograph created in Tuxedo Park on Sept. 8, 2011](#)

Source: [Getty Images — Town & Country Tuxedo archive](#)

Source: [Google Books — Tuxedo Park: The Historic Houses](#)

Source: [Tuxedo Park Library — Tuxedo Park historical books](#)

3. Filming Precedents Requiring Village-Record Confirmation

Production or request	Present record	What must be obtained	Proper argument now
Billions — Tuxedo Club tennis/court building	Multiple local accounts identify a contained production at the Club; no Chapter 51 application or enforcement record has yet been produced.	Call sheet/location agreement if available; Club records; Village application, approval, complaint, inspection, warning, or summons records.	Use as a documented lead and comparator subject to authentication—not as a conclusively proven permit precedent.
Real Housewives of New York City — private Village residence	Firsthand accounts in the uploaded memo state that a prior administration approved contained filming at a resident's property with counsel and Board concurrence.	Application, resolution, minutes, written approval, conditions, and counsel correspondence.	Shows a prior interpretive approach if confirmed; do not overstate until records arrive.
Sony/Netflix — The God of the Woods request	A proposed private-estate shoot reportedly received no formal vote before the production deadline passed.	Agenda, minutes, application, correspondence, proposed conditions, counsel communications, and any written determination.	Evidence supporting clear standards and deadlines; it was decision by inaction, not a formal legal denial.
Britalians TV / Humans of the World	Public materials confirm Tuxedo-focused programming and official interviews,	Producer, participant, call-sheet, location, or Village records.	Evidence of media interest and official participation only; not yet a confirmed private-property

	but do not establish every physical filming location inside the incorporated Village.		location precedent.
PBS American Experience — The Secret of Tuxedo Park	Commercially distributed documentaries about Tuxedo Park; much appear archival or research based.	Production/location records if on-location filming is asserted.	Publication-history evidence, but a weak comparator for physical production impacts.

4. Real Estate and Architectural Photography Is Not Economically Neutral

- A listing photograph is commissioned to market a specific transaction, attract buyers, and support the highest achievable price. The seller, broker, photographer, platform, and publisher may all receive direct or indirect economic benefit.
- Architectural and design features may generate publishing revenue, advertising revenue, professional fees, publicity for architects and designers, prestige for an owner, and increased market interest.
- The private subject is broader than a residence building. It may be a boathouse, carriage house, garden structure, interior, newly installed landscape, restored historic garden, terrace, retaining wall, or designed relationship between a building and its site.
- Architects, landscape architects, interior designers, decorators, builders, artisans, and photographers commonly document completed client work for professional websites, portfolios, social media, awards, and editorial publication. Those uses promote the design professionals' businesses and may enhance the owner's property prestige and marketability.

Tuxedo-specific architectural and garden evidence

Architectural Record published a 2016 photographic feature on the McCann Residence in Tuxedo Park, New York, designed by Weiss/Manfredi. The feature credits professional photographers Albert Večerka/Esto and Jeff Goldberg and depicts the residence, interiors, stone retaining walls, terraced garden, pathways, trees, shrubs, and ground covers. It identifies the homeowners' extensive gardening and the

architects' integration of structure and landscape. This is direct, independently documented evidence of professional photography of a private Village home, interiors, structures, and garden for a commercial architectural publication.

The Village's own website describes the Tuxedo Park Garden Club as a resident nonprofit organization devoted to preserving and enhancing the natural and historic beauty of the Village and notes its educational programs and garden visits. That civic commitment reinforces why gardens and landscapes should be included in the public discussion rather than treated as incidental to "real" property.

Source: Architectural Record, "McCann Residence in Tuxedo Park by Weiss/Manfredi" (Apr. 1, 2016) — <https://www.architecturalrecord.com/articles/11586-mccann-residence-in-tuxedo-park-by-weissmanfredi>

Source: Village of Tuxedo Park, "Garden Club" — <https://www.tuxedopark-ny.gov/mayors-welcome/pages/garden-club>

Additional verified private-property publication and marketing examples

- Renamor estate and boathouse. National real-estate coverage of this Tuxedo Park estate identifies its private boathouse as one of the property's marketed amenities. This is direct evidence that a Village boathouse can form part of a commercially motivated national property presentation. The articles establish inclusion of the boathouse in the marketing narrative; the complete image galleries should be preserved before asserting that a particular interior or exterior boathouse photograph appeared.

Sources: The Wall Street Journal, "A \$29.5 Million Tuxedo Park Estate Is the Largest Listing in the Gated New York Enclave" (2025) —

<https://www.wsj.com/real-estate/luxury-homes/tuxedo-park-new-york-estate-for-sale-87ad2799>; New York Post, "Largest-ever estate in exclusive Hudson Valley village listed for \$29.5M" (Aug. 15, 2025) —

<https://nypost.com/2025/08/15/real-estate/largest-ever-estate-exclusive-hudson-valley-village-listed-for-29-5-million/>

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- Marion Hall / Tuxedo Park Residence. Karen Arent Landscape Architects publicly presents a 15-image professional portfolio of a private Tuxedo Park residence, grounds, landscaping, and pool. The portfolio promotes the landscape architect's completed professional work and demonstrates commercially useful photography of private residential property and designed landscapes.

Source: Houzz, Karen Arent Landscape Architects, "Tuxedo Park Residence" / Marion Hall project portfolio — <https://www.houzz.com/photos/tuxedo-park-residence-craftsman-pool-new-york-phvw-vp~76784472>

- 120 Ridge Road. Jump Visual published a professional real-estate video identified as “120 Ridge Rd Tuxedo Park.” This is a direct example of commercially motivated moving-image production at a private Village property, not merely ordinary personal photography.

Source: Vimeo, Jump Visual, “120 Ridge Rd Tuxedo Park 46 s. cut” — <https://vimeo.com/1108750677>

- Chastellux. Architectural Digest reported on the marketing of this private Tuxedo Park mansion, emphasizing its McKim, Mead & White architecture, Olmsted landscape, McMillen interiors, and then-current asking price. This feature illustrates how private architecture, interiors, gardens, professional design, and real-estate marketing converge in a revenue-producing national publication.

Source: Architectural Digest, “A McKim, Mead & White Mansion Goes on the Market, and More Real Estate News” (2020) —

<https://www.architecturaldigest.com/story/mckim-mead-and-white-mansion-goes-on-the-market-more-real-estate-news>

- Kingsbury-Curtis House. The New York Post published commercial real-estate coverage of this private Tuxedo Park residence where it was offered for sale, including the home’s architecture, interior and exterior features, grounds, and market history. It is another nationally distributed example of private Village property imagery used to attract purchasers and support a commercial transaction.

Source: New York Post, “This Tuxedo Park home is listing for the first time in decades” (Mar. 3, 2025) — <https://nypost.com/2025/03/03/real-estate/this-tuxedo-park-home-is-listing-for-the-first-time-in-decades/>

Village and Tuxedo Club treatment of boathouses

The Club’s zoning and temporary-use context

The official zoning scheme places the Tuxedo Club within the same underlying A4 district, but underlying zoning alone does not make the Club legally comparable to a private boathouse. Its institutional, lodging, recreation, event, and boathouse uses may depend on lawful preexisting rights, certificates, or other approvals whose scope must be established from Village records.

The privately owned property known as the Apartments contains rental units, but its minimum rental term and legal basis remain undocumented. It should not be treated as a short-duration comparator unless those records establish relevance.

The historical record should identify the scope of any protected Club lodging, event, filming, photography, and boathouse uses and the legal classification of other properties. Until authenticated, these matters are investigative questions and policy context—not proof of selective enforcement.

- An architect’s public Archinect portfolio identifies a completed “Tuxedo Club Boathouse” in Tuxedo Park, New York, credits the Tuxedo Club, and displays project photography. This is a particularly relevant boathouse example: a design professional used images of a Village boathouse to present completed professional work. The portfolio does not establish when the photographs were taken or whether a Chapter 51 application was required or obtained; those are appropriate subjects for the Village-record inquiry.
- A 2021 architectural and landscape-design agreement posted by the Village for the Village-owned Wee Wah Beach Club required paid architects and landscape architects to obtain access, visually survey the property, measure affected structures, and photograph existing site conditions and structures. The proposed work included landscape improvements, native plantings, walking paths, a boathouse with a living roof, and other structures. This confirms that compensated professional photography of Village property, structures, and landscapes is an ordinary component of architectural and landscape practice. It does not, by itself, establish external publication or Chapter 51 treatment.
- Source: Archinect, Antonio Aiello, “Tuxedo Club Boathouse” — <https://archinect.com/urbandesignworkshop/project/tuxedo-club-boathouse>
- Source: Village of Tuxedo Park, Treestone Architecture PC/DMS Site Design, Wee Wah Beach Club Design Agreement (Nov. 15, 2021) — https://www.tuxedopark-ny.gov/sites/g/files/vyhlif6941/f/events/treestone_landscape_architect_-_wee_wah_beach_club.pdf
- Additional commercial publications reinforce the Club pattern. ADG Architects publicly presents an extensive photographic portfolio of its 46,000-square-foot renovation and addition to the Tuxedo Club, and states that the design was featured in *The 19th Hole: Architecture of the Golf Clubhouse*. Golf Course Architecture published a separate illustrated 2022 feature on the Club’s golf-course renovation, quoting the designers and Club personnel. These examples show professional and editorial use of Club-property imagery for architectural, institutional, and promotional purposes; they do not establish Chapter 51 permit history.
- Sources: ADG Architects, “The Tuxedo Club” — <https://adgarchitect.com/portfolio/the-tuxedo-club/>; Golf Course Architecture, “Jones fashions new look for New York’s Tuxedo Club” (July 22, 2022) —

<https://www.golfcoursearchitecture.net/content/jones-fashions-new-look-for-new-yorks-tuxedo-club>

- The Village Building Inspector’s January 2025 report states that the Village reviewed plans for a new stone wall at the Tuxedo Club Boathouse and dock repairs and referred the Club to the Planning Board. This record does not establish a Chapter 51 photography permit or exemption. It does confirm that the structure is specifically known to Village officials as the Tuxedo Club Boathouse and provides a concrete starting point for comparing how the Village regulates Club and privately owned boathouses, including permits, events, photography, filming, inspections, complaints, and enforcement.

Source: Village of Tuxedo Park, Building Inspector’s Report, January 2025 — https://www.tuxedopark-ny.gov/sites/g/files/vyhlf6941/f/events/reports_-_building_inspector_january_2025.pdf

- A real-estate shoot and a fashion or editorial shoot with comparable personnel, vehicles, hours, and equipment may create comparable neighborhood impacts. The Board may distinguish materially different frequency, scale, or relationship to residential use, but those distinctions should be expressed through objective criteria rather than assumed from subject matter alone.
- Drone imagery presents a separate authorization question. The pending FOIL requests seek real-estate drone applications, Board approvals, complaints, and enforcement records so comparable treatment can be evaluated.

5. Resident Influencers, Home Offices, and Commercial Identity

Modern commercial image-making is no longer limited to conventional film companies. Residents may function as their own publisher, producer, spokesperson, and distribution channel. Instagram, TikTok, YouTube, podcasts, company websites, newsletters, and professional portfolios can turn a home, garden, historic structure, boathouse, or lake view into part of a resident’s commercial identity.

Potentially covered examples include sponsored product endorsements; affiliate-supported posts; gifted-product campaigns; professional creator sessions; monetized video; an author promoting a book; an architect, decorator, or landscaper publishing completed work; and a for-profit CEO using a home office, Village building, or Tuxedo Lake in company branding. The commercial beneficiary may be the resident, a publisher, a photographer, a broker, a designer, a corporate employer, or an outside vendor.

Under a broad interpretation of Chapter 51, even a resident filming alone may fall outside §51-2 because that exception requires “no commercial purpose.” Under a narrower, impact-based interpretation, quiet and incidental at-home content would be

distinguished from productions that create traffic, parking, equipment, noise, public-road, safety, or privacy effects. The Board must say which interpretation it intends to enforce.

This category reinforces the need for subject-neutral standards. Officials should not need to inspect the message and decide whether an image is acceptable because it promotes real estate, a garden, a Club tradition, a book, a corporation, a fashion brand, or an influencer's sponsor.

- Will residents be required to disclose sponsorships, affiliate revenue, free products, or indirect promotional benefit to determine whether a recording was for “commercial gain”?
- Will a professional camera operator trigger regulation when the same resident-created content would not?
- Does deliberate use of Tuxedo Lake, a residence, garden, or historic structure as corporate branding constitute a regulated photographic session?
- How will the Village enforce the rule uniformly without monitoring residents’ social-media accounts or making content-based judgments?

6. Publication History Beyond Physical Location Shoots

The broader published record reinforces Tuxedo Park’s longstanding public identity: Jennet Conant’s bestselling Tuxedo Park; the three-volume illustrated series; American Heritage and Hudson Valley Magazine features; Emily Post publications; the Tuxedo Club’s 1886 Magazine; local and national newspaper coverage; podcasts; historical archives; and extensive real-estate press. Publication itself is different from physical filming conduct, but it demonstrates that commercial and institutional dissemination of Tuxedo Park imagery is neither new nor inherently incompatible with preservation.

Current publication update (inserted 8/20/2026) — Thomas Kenniff, Tuxedo Park (2026). Post Hill Press, distributed by Simon & Schuster, is publishing attorney Thomas Kenniff’s debut legal-political thriller Tuxedo Park on August 18, 2026. The publisher describes a fictional murder investigation unfolding in “New York’s storied Tuxedo Park,” and Kenniff’s law firm states that the novel is available for pre-order on Amazon. The book is therefore a current, commercially distributed use of the Tuxedo Park name and setting in fiction, adding to the long record of the Village’s identity being used in books and other commercial media. This is publication evidence, not evidence of a physical location shoot or a Chapter 51 permit.

Sources: Simon & Schuster, “Tuxedo Park” by Thomas Kenniff (Post Hill Press; publication date Aug. 18, 2026) — <https://www.simonandschuster.com/books/Tuxedo-Park/Thomas-Kenniff/9798895657126>; Raiser, Kenniff & Lonstein, “New Book Written By Founding Partner, Thomas Kenniff” — <https://www.rkl.law/>; Apple Books, “Tuxedo Park,” Thomas

Kenniff (pre-order; expected Aug. 18, 2026) — <https://books.apple.com/us/book/tuxedo-park/id6764059449>, and Simon & Shuster, About the Book - <https://www.simonandschuster.com/books/Tuxedo-Park/Thomas-Kenniff/9798895657126>

National press provides additional context. A 1986 Los Angeles Times/Associated Press feature described Tuxedo Park as a museum of American architecture, discussed restoration, gardens, housing prices, property taxes, zoning disputes, and the community's centennial publicity. The Wall Street Journal's 2016 feature, "A Home Designed to Be Barely There," is another national commercial publication of the Weiss/Manfredi McCann residence and therefore corroborates dissemination of that same photographed private-home project; it is not counted as a separate physical shoot. The New York Times published a 2017 real-estate community profile, "Tuxedo Park, N.Y.: A Time Warp Beyond the Stone Gates." These sources strengthen the documented history of commercial and editorial attention to Village homes, architecture, restoration, property values, and community character, although publication alone does not establish the physical circumstances or Chapter 51 status of every photograph.

Sources: Los Angeles Times/Associated Press, "Tuxedo Park: Everyday Look Is In at Exclusive Community" (Nov. 9, 1986) — <https://www.latimes.com/archives/la-xpm-1986-11-09-mn-24431-story.html>; Wall Street Journal, "A Home Designed to Be Barely There" — <https://www.wsj.com/articles/a-home-designed-to-be-barely-there-1472136728>; The New York Times, "Tuxedo Park, N.Y.: A Time Warp Beyond the Stone Gates" (Apr. 5, 2017) — <https://www.nytimes.com/2017/04/05/realestate/tuxedo-park-ny-a-time-warp-beyond-the-stone-gates.html>

7. Questions for the Board and FOIL Record

- Which listed activities applied under Chapter 51, and what conditions were imposed?
- Which activities occurred without an application, and when did officials learn of them?
- After officials learned of an unpermitted activity, was any warning, stop-work order, summons, or prosecution issued?
- Did officials treat the Tuxedo Club, a residence, a standalone boathouse, and a real estate listing differently under the same language?
- If real estate, book, news, Club, nonprofit, or Village-sponsored imagery will be exempted, what difference in physical neighborhood impact justifies the distinction?

8. Conclusion

The record supports consideration of neutral regulation directed to external effects. It does not, by itself, establish that any prior activity violated Chapter 51, that officials knew of it, or that a legally identical applicant received different treatment. Those questions depend on Village records and authenticated production facts.

Primary basis: VOTP Publications memorandum and VOTP MainFilmFile memorandum supplied by David McFadden, supplemented by the public sources linked above. Items dependent on Village records or firsthand accounts are expressly labeled for authentication.

9. The McFadden Session: Control, Terminology and Proper Comparator

The McFadden's advertised the historic boathouse's availability as a location for occasional photography sessions. They did not advertise residential occupancy, sleeping accommodations, or possession of the property. The one session lasted approximately six hours, David remained present, and the owner's retained possession, supervision, and control.

That distinction should be preserved throughout the record without implying that Chapter 51 is inapplicable. The closest policy examples are owner-hosted professional, editorial, design, and real-estate activity of comparable scale. A legal comparator would additionally require similar zoning and use status, compensation, official knowledge, application history, and enforcement outcome.

10. Evidence Status and Preservation

The examples in this exhibit fall into three evidence categories: (1) independently documented physical location activity; (2) publication or marketing evidence that does not by itself prove where or how the underlying photographs were created; or (3) a documented lead awaiting Village records, production records or firsthand authentication. Keeping those categories distinct supports an accurate and credible hearing record even when a particular example remains unconfirmed.

The Village should preserve and produce all Chapter 51 applications, approvals, conditions, complaints, and enforcement records since 2011, together with durable copies of supporting online sources.